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UC regents say - campus rules must be consistently enforced

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Many University of California regents and campus leaders are signaling they will no longer tolerate encampments and intend to consistently enforce rules pertaining to protests as they brace for the possible escalation of campus turmoil over the Israel-Hamas war when students return to class in the fall.

"I am confident that encampments won't be tolerated," Regent Rich Leib said in a recent interview before stepping down as board chair. "I'm confident the regents feel we need to enforce the rules."

Protests inflamed campuses after Hamas militants attacked Israel in October and Israel responded with a massive, ongoing military retaliation in Gaza. Encampments became the physical symbol of pro-Palestinian protests at numerous colleges nationwide, including all 10 UC campuses beginning in April.

But, lacking a systemwide directive on how to handle them, campuses responded differently. Some chancellors shut down encampments with police intervention after a few days. Others allowed them to stay up for weeks before students voluntarily dismantled them. At some campuses, protesters fortified the spaces with defensive plywood walls and barricades - but Jewish students complained they blocked access to public walkways and buildings at UCLA and elsewhere.

While some encampments remained peaceful gathering spots featuring teach-ins, art projects and solidarity activities dedicated to Palestinians, others - especially at UCLA - became hotbeds of conflict and the source of antisemitism complaints.

UC is now laying the groundwork to address growing calls for a tougher and more consistent approach to managing protests.

UC President Michael V. Drake has not issued a directive to chancellors ordering them to immediately quash future encampments. But he is currently working with UC leaders to craft a plan to bring all campuses into greater conformity about how to handle violations of rules around free speech activities and the guidelines "will assume the immediate removal of any encampment," according to a UC senior administrator who spoke on condition of anonymity to discuss the sensitive topic.

"Moving forward, in close partnership with UC chancellors, President Drake is focused on learning from what transpired over the last few months and ensuring that we have more consistency across the system in how key policies are implemented and enforced," the president's office said in a statement.

State orders up a plan

The UC's actions will be under a microscope by state legislators.

Lawmakers have directed Drake to develop a "systemwide framework" to provide consistent enforcement of rules - and are withholding $25 million in state funding until he delivers a report on his efforts by Oct. 1.

The UC must notify all students by the beginning of fall term about rules around free speech activities, student codes of conduct, nondiscrimination policies, campus processes to resolve alleged violations and potential consequences, among other requirements. The state report must also include UC efforts to consistently enforce policies and laws "that protect safety and access to educational opportunities and campus spaces and buildings."

Assemblyman Jesse Gabriel (D-Encino), chair of the Assembly Budget Committee and co-chair of the California Legislative Jewish Caucus, pushed for the condition and said "it underscores how seriously we take these issues." Lawmakers expect the framework to show how UC will "prevent a repeat of last year's violence and chaos," he said.

Drake's office plans to consult with chancellors, regents, state and federal lawmakers, students, faculty, staff and others on "how UC campuses can carry out core operations while ensuring that free expression flourishes and everyone feels respected, valued, and safe."

Violence at the UCLA encampment radically changed the tolerance quotient. Outside agitators sparked a melee on April 30, five days after the encampment was set up, and UCLA leaders failed to secure enough law enforcement to quell the violence for hours. Two days later, law enforcement moved in to take down the tents in a controversial action that led to more than 200 arrests.

Chancellors at Irvine, San Diego, Santa Cruz and Santa Barbara also called in law enforcement to dismantle the tents following the UCLA debacle. Students ended their encampments voluntarily without police action at UC Riverside, UC Davis, UC Merced and UC San Francisco.

In his first extensive public remarks on the issues, Leib spoke out about his own involvement in protest management during an interview about his tenure as board chair, which ended on June 30 after more than two years.

The protests weren't the only issue to command his attention during his term. Leib said his most important work involved empowering campuses to turn their innovative research into entrepreneurial ventures with fewer central bureaucratic obstacles. He said greater access to coveted UC seats is still a key issue - satellite campuses are "really important" - as is the need for more student housing and campus diversity to reflect the state's demographics.

But protests over the Israel-Hamas war emerged as the most explosive, divisive and personally resonant issue of his tenure.

Senior UC leaders support end to encampments

Leib, who is Jewish and a strong supporter of Israel, said he opposes encampments because they create safety problems, impede campus operations, foment an unwelcome environment for those who disagree with protesters and bring on costs for security and clean up. Another problem, he said, is that if encampments are allowed for one group, they have to be allowed for all.

"I'm strongly in favor of peaceful protests," said Leib, adding that he demonstrated against South Africa's apartheid as a UC Santa Barbara student in the 1970s. "What I'm not in favor of is having 1% of the student body basically ruining the school experience for the other 99%."

Many regents and senior leaders backed Leib's stance in interviews with The Times.

Regent Jose Hernandez also supports a ban on encampments, while preserving the right of students to peacefully protest.

"If we are legally able to say 'Thou shalt not create encampments,' I think we should enforce that," he said. "That will alleviate a lot of problems instead of having things percolate and blow up in your face."

Escalating protests concerned regents

Leib said regents initially deferred to chancellors, who are authorized by the board to set campus rules regulating protests and decide when and how to enforce them. The campuses have developed similar rules - banning

camping, certain amplified sound, blocking of walkways, disrupting classes and other university operations, among other activities.

Chancellors at first allowed the encampments as they tried to bring a peaceful end to them through negotiations. That approach is recommended in UC systemwide guidelines that place dialogue as the "cornerstone" of protest responses, with police force used as the last resort - developed after UC Davis police drew widespread outrage by pepper-spraying student protesters during the Occupy movement in 2011.

But Leib said he and some other regents became increasingly concerned by the variance in campus approaches.

UC Berkeley was the first UC campus to allow an encampment on April 22 - and then-Chancellor Carol Christ resisted pressure from regents and others to dismantle it, saying she knew what was best for her university. Three weeks later, the protesters voluntarily dismantled the encampment without police action after Christ forged an agreement to review university investments and academic exchange programs while making clear that targeting Israel was off the table.

Leib said he never directed any campus to remove an encampment but "strongly encouraged" it. He said he repeatedly asked UC Santa Barbara leaders, for instance, what their plan was to end the encampment, which lasted 54 days until police dismantled it June 23 and arrested six people. He also monitored negotiations between campus administrators and protesters at Berkeley and UC Davis to make sure they crossed no red lines - including targeting Israel or violating state laws.

Some campuses have already decided on a tougher approach.

"Encampments are not allowed," UCLA said in a statement to The Times last week. "The regulations that prohibit blocking entrances, obstructing students and camping, except in authorized facilities or locations, have been in place since 2017."

UC San Diego Chancellor Pradeep Khosla said his campus would follow policies developed by regents and Drake's office, along with state law, "as it relates to illegal encampments."

Students vow to continue protests, said Rebecca Hurtado Fairweather, who participated in the UC Santa Barbara "Liberated Zone Encampment" before graduating last month.

"Tents don't make a movement, people make a movement," Fairweather said. "People will find a way to show up in the way they want. If the system is not willing to work with us, then we have to work outside the system."

Calls for equal enforcement

Although many UC leaders are now calling for more consistent enforcement of campus rules, it's not as easy as it sounds.

For example, how should prohibited camping be defined? UCLA students routinely line up overnight with sleeping bags to nab coveted tickets to sports events. UC Berkeley students last year protested plans to close the anthropology library by camping there for nearly three months before ending the sleep-in due to a campus compromise to keep it open as a reading room. UC Riverside academic workers occupied a building for a week during the 2022 strike. Should they all have been swept out by police?

"How can we have a one size fits all? UC has never done that," said one senior UC administrator, who spoke on condition of anonymity to discuss the sensitive topic.

George Blumenthal, a former UC Santa Cruz chancellor, said most campus leaders would not want to lose their autonomy to central dictates that might force them to take actions they believe are unsuitable - even if a uniform playbook made their jobs easier. Enforcement could also get expensive, he added, since campus police forces are

too small to handle large demonstrations of civil disobedience and calling in outside law enforcement is pricey.

James Steintrager, UC Academic Senate chair, said faculty leaders favor more consistency in enforcing campus codes of conduct, concerned that students should not be subjected to different applications of rules, such as interim suspensions that could interfere with progress toward their degrees.

Like other leaders, he said campuses should robustly defend 1st Amendment rights even if protest chants or signs make someone feel uncomfortable or offended.

Leib, who remains on the board and will head the academic affairs committee this year, said one of his biggest priorities will be safety for all students.

"I'd be ashamed if we didn't have strong feelings and strong controversies and these kinds of big gatherings to express your opinions. That's what America is about," Leib said. "But we have to keep campus open for everybody. No one should have their campus experience ruined by others because they happen to be Jewish or Muslim."

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